

Parishudh Machines Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 September 2016 · Writ-C No. 49648 of 2009 · **Writ petition dismissed as infructuous**

HEADNOTE

A writ challenging an additional-security demand under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. An earlier 2009 listing order had, without prejudice and following a similar interim in W.P. No. 30582 of 2009, only restrained the licensee from demanding additional security until further orders; the Code question was never decided.

FACTUAL SUMMARY

The petitioner, an industrial consumer, challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand notice dated 11 August 2009 seeking additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. Counsel pointed to an interim order of 23 June 2009 in Writ Petition No. 30582 of 2009 (M/s Vehlana Steels & Alloys Pvt. Ltd.). On 16 September 2009 the Court listed the matter with other similar 2009 petitions and, without prejudice, restrained the respondents from demanding additional security until further orders.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security demand

HOLDING

The writ petition challenging a demand for additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. The Court did not decide whether such additional security could be demanded. The 16 September 2009 order had only listed the petition with similar 2009 matters and, without prejudice to the parties' rights, restrained the licensee from demanding additional security until further orders. ¶ 1-2

PRINCIPLE TAGS

additional-security A writ challenging an additional-security demand under paragraph 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement. An earlier 2009 listing order had, without prejudice and following a similar interim in W.P. No.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY COULD BE DEMANDED UNDER PARAGRAPH 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The 2009 interim restraint was without prejudice; the petition was later dismissed as infructuous without a merits ruling. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Vehlna Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> W.P. No. 30582 of 2009 (order dated 23 June 2009)			1	Referred

SCJ-732 · Parishudh Machines Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.